

Munni Lal v. State of U.P.

Allahabad High Court · Division Bench · 17 March 2020 · WRIT - C No. - 8733 of 2020 · **Writ petition dismissed with liberty to avail Clause 6.5.**

HEADNOTE

A writ seeking recalculation of electricity charges and a corrected consumption bill is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies the statutory remedy. The petition is dismissed with liberty to pursue that Code remedy.

FACTUAL SUMMARY

Munni Lal filed a writ petition in the Allahabad High Court seeking an appropriate writ, order or direction requiring the State of Uttar Pradesh and the other respondents to recalculate the electricity charges pertaining to him and to furnish a corrected electricity consumption bill so that those grievances could be adjudicated. The petition was heard in the Chief Justice's Court by a Division Bench comprising Govind Mathur, C.J. and Ajit Kumar, J., with counsel for the petitioner and standing counsel for the State appearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-writ-not-entertained

HOLDING

A consumer who seeks recalculation of electricity charges and a corrected consumption bill must pursue the remedy provided under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court will not entertain a writ petition ignoring that Code remedy; the petition is dismissed with liberty to avail the appropriate remedy under the Code. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Division Bench refused to entertain the writ because Clause 6.5 already supplies the forum for the billing grievance, and dismissed the petition with liberty to take that remedy. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The petitioner's prayer for recalculation of electricity charges and a corrected bill was treated as a disputed-bill grievance for which Clause 6.5 is the statutory remedy. ¶ 1

bill-correction-clause-6.5 Relief of a corrected electricity consumption bill was left to Clause 6.5 rather than being granted on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ELECTRICITY CHARGES REQUIRED RECALCULATION OR THE BILLED CONSUMPTION WAS INCORRECT.

The Court did not examine the bill on merits and left the grievance to the Clause 6.5 remedy. ¶ 1